

Digital Conformism and the Vulnerability of Exposure

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1 Introduction

Digital conformism is a concept that has emerged during the digital age, referring to the tendency of individuals to conform to the norms and behaviors that are prevalent in so called "digital swarms". As discussed during the course, when we refer to digital swarms we're describing digital communities, which however are not exactly communities, in fact they're kept together by transient and fragile common preferences, and not by a common identity.

Inside these swarms, individuals do not act as independent users, rather they're influenced by what is popular and trending, following a common ground which can be described through the Dictatorship of Das Man.

Following what is dictated on the net, individuals share their personal life and other personal information. This data, however, could later be used by malicious actors to harm them, and this is where the vulnerability of exposure comes into play.

Ultimately, this phenomenon raises important questions about legal challenges regarding the privacy of users online, as well as the validity of consent in a flat-form where sharing is the norm, and is driven by a constant social pressure rather than genuine willingness to do so.

2 Philosophical Foundations

In everyday life, we tend to conform to what "one" does. For example, we avoid what one avoids, we enjoy what one enjoys, and we follow what one follows. This is what the philosopher Martin Heidegger called the "Dictatorship of Das Man". Das Man is, in fact, the "one", that dictates what is normal and what is not, what is popular and what it isn't. This can also be translated to the concept of mediality (or averageness), through which each uniqueness a person has is lost.

The Das Man operates in the net through three main phenomena of everydayness, which are:

- Chatter: in the digital world, communication is not aimed solely at a profound comprehension, rather at a pure diffusion of content, with the objective of becoming viral. Trends and challenges are the embodiment of chatter, as users repeat actions without understanding their meaning and their risks, just because that is what the Das Man dictates.
- Curiosity: users spend hours and hours scrolling through feeds in social media applications, with a strong inability to dwell on a specific content, and understand it fully.
- Ambiguity: in the digital realm, everything looks as it is real and authentic, while at the bottom is merely a performance and a superficial representation of reality.

In the digital world, this phenomenon is amplified by the presence of trends and challenges, which are designed to encourage users to conform to certain behaviors and norms. This effectively creates a digital swarm, where individuals are influenced by the collective behavior of the group, doing what “one” does, and sharing what “one” shares. The Das Man effectively dictates what is normal and acceptable.

This way of being inside the net removes the burden of making choices, and of being responsible for them, since one just follows what is dictated by the swarm. A user shares personal details through videos or stories on social media, just because the others do the same.

The reason behind this collective behavior is given by the fact that being on the net requires constant exposure, otherwise users just disappear in the digital swarm. Thus, users become performers, where the net is their stage, and they’re both directors and actors of their own performance. What is performed, however, only reveals a portion of the user’s identity, and this is because of the presence of the Das Man, which dictates what is acceptable and what is not, and thus what can be shared and what cannot.

Comparative measurement, which is the act through which dasein compares itself to others, also plays a role in this phenomenon. Users “spy” on others, putting themselves in a position of subjection, and this lead them to conform to what is trending, since they want to be part of the swarm, and not to be left out. The clout they seek is a mere quantitative approval, which is given by the number of likes, followers and view they obtain for their overexposed performance.

This, however, creates a vulnerability of exposure, since the shared data could be used by malicious actors (attackers) to harm users.

3 Cybersecurity and Philosophy

Users are effectively placed inside (and place themselves voluntarily) a Digital Panopticon, where they’re both observed by others, but also from malicious

actors, who behaves as the guards of the panopticon, and observe what they share.

Thanks to the data they're able to collect, attackers can perform various types of attacks, like phishing, social engineering, identity theft, and so on.

The foundation of these attacks is rooted in OSINT (Open Source Intelligence) techniques, which are used by attackers to gather information about their targets, without needing to compromise any system, rather just by collecting data that is already available online.

Through social engineering, for example, attackers can manipulate users leading them to believe they're interacting with a trusted entity, and thus tricking them into sharing additional information, or perform actions that could harm them. Furthermore, with the emergence of Artificial Intelligence (AI), identity theft has become more sophisticated. Thanks to generative AI, attackers can create deepfakes, which are realistic images, videos and audio recordings that can be used to impersonate someone else, and thus steal their identity. These phenomena represent the manifestation of Heidegger's concept of ambiguity, since it becomes almost impossible to distinguish between what is real and what is not. These tools are increasingly being used for various malicious purposes, like blackmailing, defamation, and so on.

This intersection between digital conformism and cybersecurity raises a profound legal paradox. In the traditional legal framework, users are expected to be responsible and make rational decisions. However, inside the digital panopticon, users effectively consent to share their data under the pressure of the dictatorship. Since shared data is legally considered as public, the boundaries of privacy and legal protection are almost destroyed. A critical question emerges from this: is the law able to protect users when they themselves are effectively responsible for sharing their data, and thus for their exposure?

4 Legal Implications

While laws are built to protect a community of users from harm, in the digital realm users are effectively responsible for their own exposure, placing themselves inside the digital panopticon, and sharing their data under the pressure of the dictatorship.

As a society, we're slowly drifting from a democracy to a "dromocracy". This is also reflected in the legal system, which is not able to keep up with the rapid changes in the digital realm, and thus fails to legislate effectively to protect users. Furthermore, traditional law is built through human language and interpretation, while the digital realm is built through code, with Software Engineers becoming the new lawmakers.

Under the dictatorship of Das Man, the user on the net is not able to protect themselves, and therefore the law has to step in and protect them. This is reflected in the concept of "Privacy by Design" or "Privacy by Default", which are legal principles that require companies to design their products and services

in a way that protects users' privacy by default, and to implement privacy features that allow users to control their data. Both these principles are part of the General Data Protection Regulation (GDPR), which is a legal framework that sets guidelines for the collection and processing of personal data of individuals within the European Union. Users should be able to control how their data is collected, used and shared, and to have the right to access, rectify and delete it in the future. However, as debated during the course, once data is shared on the net, it would be difficult to completely delete it, since it could be copied and shared by others, and thus the user would lose control over it.

Furthermore, the rise of AI and deepfakes has created new legal challenges, as it has become difficult to distinguish between what is real and what is not, and thus new regulations have been proposed to address these issues. For example, the European Commission has proposed the AI Act, which is a legal framework that sets guidelines for the development and use of AI, including provisions for the use of deepfakes.

Ultimately, the legal implications of digital conformism are profound, as they challenge the traditional legal framework, and raise important questions about the responsibility of users, the role of the law in protecting them, and the future of privacy in the digital age.

5 Conclusions

As Heidegger argued, there is a way of escaping this condition of conformism dictated by Das Man, and this is through anguish (*angst*). Heidegger posits that, through anguish, individuals are abruptly torn away from their inauthentic immersion in the dictatorship of Das Man, and thus they can find their lost authenticity (Eigentlichkeit).

In the digital context, anguish is reflected in the awareness of the risks and consequences of sharing their personal data. This could happen, for example, through education and awareness, but also through the experiencing of a cyber attack, like a data breach, identity theft, and so on. Right in these moments, the user becomes aware of the risks and of its own vulnerability.

Law has to play a crucial role in this process, granting users to ability to “be forgotten” once the awareness is reached, and the user decides to withdraw themselves from the net.